

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

COMMITTEE SUBSTITUTE
FOR ENGROSSED
SENATE BILL NO. 1319

By: Frix of the Senate

and

Sneed of the House

COMMITTEE SUBSTITUTE

An Act relating to the Corporation Commission;
establishing program to address certain emergencies;
requiring an application; allowing for the purchase
of contaminated property; allowing for remediation;
requiring the return of certain funds; authorizing
the promulgation of rules; creating the Remediation
Assistance Revolving Fund; establishing revolving
fund characteristics; declaring the funds
appropriated; providing for codification; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
is created a duplication in numbering, reads as follows:

A. The Corporation Commission shall establish a process to
alleviate new and ongoing serious environmental emergencies through

1 which a homeowner whose residence has become contaminated by a
2 substance within the Corporation Commission's jurisdiction,
3 including, but not limited to, brine or oil, may apply for
4 remediation assistance.

5 B. 1. To request the use of funds from the Remediation
6 Assistance Revolving Fund created in Section 2 of this act, the
7 homeowner shall file an application to be considered by the
8 Corporation Commission. The Corporation Commission may hear the
9 application with or without notice.

10 2. After considering the evidence presented, the Corporation
11 Commission shall rule on the application and determine the amount of
12 remediation assistance necessary to remediate and abate the
13 environmental emergency.

14 3. The amount of remediation assistance may include the cost to
15 stop the substance from continuing the contamination, the cost of
16 removing and cleaning up the substance, and the cost of purchasing
17 the residence and property at fair market value. The Remediation
18 Assistance Revolving Fund shall not be used to pay for any damages.

19 4. Prior to any expenditure from the Remediation Assistance
20 Revolving Fund, the Corporation Commission shall comply with the
21 requirements set forth in Section 85.41A of Title 74 of the Oklahoma
22 Statutes.

23 5. If the Corporation Commission or other agency identified in
24 subsection C of this section determines that purchasing the

1 homeowner's property is the best course of action, title to the
2 property may be acquired and held by the city or county in which the
3 property is located. If the city or county chooses to acquire the
4 property, the city or county shall determine the fair market value
5 of the property. If removal of the residence is necessary, the city
6 or county shall facilitate removal of the residence. Once the
7 residence is removed and the presence of a well is confirmed, the
8 Corporation Commission shall remediate and abate the environmental
9 emergency. After the property is remediated, the city or county
10 shall sell the property and return all proceeds to the Remediation
11 Assistance Revolving Fund.

12 6. A homeowner's insurance claim shall not be required prior to
13 receiving remediation assistance provided pursuant to this
14 subsection. However, the homeowner shall in good faith pursue all
15 available homeowner's insurance claims and damage claims. All
16 proceeds received by the homeowner not related to damaged personal
17 property shall be reimbursed to the Remediation Assistance Revolving
18 Fund.

19 C. If, at any time, the environmental emergency is determined
20 by the Corporation Commission to not be within the Corporation
21 Commission's jurisdiction, or it is determined to be a naturally
22 occurring breakout, the matter shall be referred to the Department
23 of Environmental Quality to remediate and abate the environmental
24 emergency only if sufficient funds exist in the Remediation

1 Assistance Revolving Fund to perform the remediation work or
2 abatement.

3 D. The Corporation Commission shall promulgate rules to
4 effectuate the provisions of this section.

5 SECTION 2. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
7 is created a duplication in numbering, reads as follows:

8 There is hereby created in the State Treasury a revolving fund
9 for the Corporation Commission to be designated the "Remediation
10 Assistance Revolving Fund". The fund shall be a continuing fund,
11 not subject to fiscal year limitations, and shall consist of all
12 monies received by the Corporation Commission from any public or
13 private donations, contributions, and gifts received for the benefit
14 of the fund and any amounts appropriated by the Legislature
15 designated for deposit in the fund. All monies accruing to the
16 credit of the fund are hereby appropriated and may be budgeted and
17 expended by the Corporation Commission or the Department of
18 Environmental Quality for the purpose of providing remediation
19 assistance as provided for in Section 1 of this act. Expenditures
20 from the fund shall be made upon warrants issued by the State
21 Treasurer against claims filed as prescribed by law with the
22 Director of the Office of Management and Enterprise Services for
23 approval and payment.

24

SECTION 3. It being immediately necessary for the preservation
of the public peace, health or safety, an emergency is hereby
declared to exist, by reason whereof this act shall take effect and
be in full force from and after its passage and approval.

60-2-17461 JM 04/15/26